

SENATE BILL 209

By Jackson

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, relative to confidential records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-504, is amended by adding the following new subsection:

(1) In addition to subsection (f), and upon request as provided in subdivision () (2), the following records or information of active or former sworn state and local law enforcement officers; correctional and correction probation officers; personnel of the department of children's services whose duties include the investigation of child abuse, neglect, exploitation, fraud, theft, or other criminal activities; personnel of the department of revenue or of local government agencies whose responsibilities include revenue collection; justices, judges, chancellors, commissioners, and staff of state and local courts; district attorneys general; and public defenders are not public records:

(A) Home addresses;

(B) Telephone numbers;

(C) Social security numbers;

(D) Dates of birth; and

(E) Official photographs or photographs taken in the scope of employment.

(2) For purposes of effectuating subdivision () (1), such individual must submit a written request to each state or local government agency with records of or access to the information identified in subdivisions () (1)(A)-(E) requesting that such information be

maintained confidentially. Upon receipt of a request under this subdivision ()(2), the respective state or local government entity shall maintain the identified records confidentially and not make the records available for public inspection.

(3) The governing body of a local government may establish or designate an individual or agency as responsible for receiving requests under subdivision ()(2) and distributing notice to all agencies and departments of the local government for purposes of compliance with this subsection ().

(4) Notwithstanding this subsection (), information maintained confidentially under this subsection () may be released in response to a court order, subpoena, or law enforcement agency conducting an active investigation.

(5) Information made confidential by this subsection () must be redacted from public records whenever possible and nothing in this subsection () may be used to limit or deny access to otherwise public records because a file, document, or data file contains confidential information.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.